



Department of Higher Education

Division of Private Occupational Schools

PRIVATE OCCUPATIONAL EDUCATION ACT OF 1981

8 CCR 1504-1

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

STATEMENT OF BASIS AND PURPOSE

The Private Occupational School Board, Colorado Department of Higher Education adopts these Rules and Regulations ("Rules") pursuant to the rule making authority as stated in the Private Occupational Education Act of 1981, Colorado Revised Statutes, Article 64 of Title 23 ("The Act") at § 23-64-108(1)(i), C.R.S., for the purpose of delineating and clarifying the respective responsibilities of the Private Occupational School Board, the Division of Private Occupational Schools and the Private Occupational Schools under the Act as revised.

I. DEFINITIONS

In addition to the definitions used in the Private Occupational Education Act of 1981, the following will also apply in interpreting the Act and Rules except where the context requires otherwise.

- A. "Acceptable full-time equivalent employment/work experience" (for the purposes of instructor qualifications) means full-time equivalent work experience reasonably related to the occupational area to be taught or supervised.
- B. "Accreditation" is a status granted to a school by one or more of the accreditation organizations approved by the U.S. Secretary of Education as having met a set of standards established by the organization, or by a programmatic accrediting body recognized by the Council for Higher Education Accreditation as having the ability to accredit freestanding, single-purpose institutions of construction education. Accreditation is voluntary and does not imply automatic transfer of credits from one institution to another.
- C. "Admission requirement" means the specific minimum criteria a school must use when accepting a student into the school.
- D. "Advanced training" means a program or stand-alone course that requires basic training or experience in an industry or profession as a prerequisite before a student is eligible for enrollment. If the industry or profession requires, a student must have an active and applicable license from the regulating body as a prerequisite to enroll in the advanced training.

- E. “Ancillary/supplementary education” means an optional stand-alone course to further the knowledge of a professional in a specific industry or profession. The education must meet current industry standards that benefit or support the professional in the specific industry or profession. The education must be less than 40 hours and have a total cost of less than \$1000. For professionals holding an active license in good standing that is regulated by a Colorado state professional licensing entity, the education, curriculum, syllabi, and licensed professional instructing the education must be approved by an industry recognized certification board, or registered product manufacturer or supplier. Those seeking an exemption for ancillary/supplementary education pursuant to § 23-64-104(1)(c), C.R.S., must request exemption in a manner approved by the Board.
- F. “Apprenticeships” are registered and defined by the Colorado State Apprenticeship Agency and the United States Department of Labor and Employment.
- G. “Approval” means approval by the Colorado Private Occupational School Board (“Board”) unless otherwise provided by these Rules and requires fulfillment of the standards established by the Act and Rules.
- H. “Asynchronous” means a learning activity involving academic engagement in which the student interacts with technology that can objectively monitor and document that the student meaningfully participates and benefits from the activity, and by appropriate method, tracks student participation and performance.
- I. “Avocational Education” means any education to facilitate the personal development of individual persons which is distinguishable from one’s recognized occupation and is not conducted as part of a program or course designed with the objective to prepare individuals for gainful employment in a recognized occupation. Such avocational education includes programs or courses where the instruction is primarily for personal interest and is recreational such as any hobby, craft, personal development, or non-occupational interest.

- J. “Bona fide” means a trade, business, professional or fraternal organization that: is widely recognized by the industry; primarily benefits the organization’s membership or mission; conducts its activities in a manner that serves public or charitable purposes, rather than commercial purposes; receives funding and revenue and charges fees in a manner that does not incent it or its employees to act other than in the best interest of its membership; compensates its employees in a manner that does not incent its employers to act other than in the best interest of its membership; and has existed and operated as a bona-fide organization for two years or more. The Division has the discretion to determine whether the trade organization meets the definition of bona fide and whether its level of oversight is adequate. Those seeking an exemption from the provisions of Article 64, Title 23, C.R.S, for education pursuant to § 23-64-104(1)(h), C.R.S., must apply for the exemption in a manner approved by the Board.
- K. “Certified” is a term used by schools to describe certain programs or courses. The Division does not regulate the use of the term “certified” or certify or license persons.
- L. “Computer/online based instruction” means instruction via electronic media.
- M. “Continuing Education” means a continuing professional educational program or courses as set forth in § 23-64-104(1)(o), C.R.S.
- N. “Course” means a unit of learning which is an integral part of an occupational program of learning.
- O. “Contact/Clock hour” means a period of time consisting of a 50- to 60-minute class, lecture, or recitation in a 60-minute period or a 50- to 60-minute faculty-supervised laboratory, shop training, or internship in a 60-minute period for in-person or synchronous delivery.
- If the program or stand-alone course is asynchronous or synchronous and requires a minimum number of contact/clock hours, the school must demonstrate that the education comports with minimum requirements in accordance with any applicable governing body.
- P. “Designated agent” is the school’s representative, having a physical Colorado address (no P.O. Box addresses) other than the school’s address, and upon whom any legal process, notice, or demand may be served. Each school must have a designated agent identified at all times the school is operational and provides educational services.

- Q. “Distance Education” is a formal education process in which the orderly delivery of instruction occurs beyond a school’s walls through virtually any media since the student and instructor are in different locations. Distance education may employ a variety of communication methods for delivering instruction to students.

Distance education could be offered either synchronous or asynchronous. Whether a particular method of distance education is appropriate for a particular type of education is a case-by-case decision by the Division.

- R. “Enrollment” for the purposes of reporting data to the Division means any student who has signed an enrollment agreement with the school and remains enrolled after 10% of the training has elapsed.
- S. “Externship” is an educational component for which academic credit is awarded, offered as part of an instructional course or program. Externs follow an experienced professional to learn more about their responsibilities without engaging in specific job related tasks or projects. Accredited schools only – if no alternative definition is provided by your accrediting body, then the above definition shall apply.
- T. “Fees”, except when used in the context of fees assessed by the Board pursuant to § 23-64-122, C.R.S. (“Board fees”), means a refundable charge assessed to enrolling students and which are intended to cover non-instructional expenses. Fees may not be used to cover instructional expenses or books and supplies. All fees as defined herein must be itemized.
- U. “General Education” means that body of instruction which is not directly related to a student’s formal technical, vocational, or occupational development, but is supportive as a required part of a student’s occupational education, and is intended to impart common knowledge, intellectual concepts, and attitudes. For example, math is a general education course, but applied math is not.
- V. “Hybrid education” blends distance education and in-person instruction. Hybrid education integrates both traditional classroom learning and digital tools for instruction and must include frequent regular interaction between students and instructors.
- W. “In-state school” is a school with physical presence within Colorado that provides occupational education to students.

- X. “Instructor” means any person employed by a school, contracted by a school, or who otherwise provides either in-person or distance education in a program or stand-alone course for the purpose of delivering instruction or training necessary to meet the stated objectives of the program or stand-alone course in which the person is qualified to teach; determines educational objectives and activities of any program or stand-alone course, including, but not limited to measures, assesses, records, reports or evaluates students’ attendance, achievement or completion of lessons, courses or training programs; maintains essential student records and data for which s/he is responsible according to state law or school policy; or exercises technical and functional supervision over instructional staff.
- Y. “Instructional Staff” means instructors and, if applicable, program supervisor(s). Prospective instructional staff means program supervisor or instructor applicants that a school intends to hire.
- Z. “Internship” is an educational component for which academic credit is awarded, offered as part of an instructional course or program with job experience included. Accredited schools only – if no alternative definition is provided by your accrediting body, then the above definition shall apply.
- AA. “Major program or stand-alone course revision” means changes since the last approval by the Board to the method of delivery; to the occupational objective; and/or increases or decreases in the total hours of the program or stand-alone course exceeding 25% of the total hours of the program or stand-alone course as approved.
- BB. “Minor program or stand-alone course revision” means any revision not meeting the definition of a major program or stand-alone course revision.
- CC. “Occupational in Nature” for the purposes of determining an exemption under § 23-64-104(1)(c), C.R.S., means a program or course that satisfies the definition of “educational services” or “education” contained in § 23-64-103(13), C.R.S., and the definition of “occupational education” contained in § 23-64-103(17), C.R.S. Any program or course that does not meet this definition is not occupational in nature.
- DD. “Out-of-state school” is a school located outside of Colorado that offers occupational education from its location through distance education, which actively solicits, recruits, and enrolls Colorado residents as students.
- EE. “Physical presence” means a school that delivers educational services within Colorado, including any combination of factors lending to the determination that the institution maintains a physical presence within the state, including, but not limited to, the presence of a physical facility or equipment, whether owned, leased, rented, or provided without charge; the physical location of student records; or the presence of an on-site school director or similar administrator.

- FF. “Prepaid tuition and fees” (for surety purposes) means the total of prepaid, unearned tuition and fees paid by students but not yet earned by the institution, including debt incurred as a result of financial aid disbursements to the student.
- GG. “Prerequisite” means any education, credential, license, coursework, specialized training, or expertise required as a necessary precondition of admission into a program or stand-alone course, including advanced training. Admission requirements such as high school diploma or GED are not considered prerequisites.
- HH. “Program” means a group or series of organized courses, lessons, or units of instruction that constitutes occupational education.
- II. “Provisional Certificate of Approval” means a conditional approval for a new school to operate. A provisional Certificate of Approval is effective for more than one year, but less than two years and during the time of the provisional approval, the school shall establish satisfactory operation and maintain the minimum standards of the Act and these Rules.
- JJ. “Regulatory credential” means a license, certification, registration, journeyman’s card, or similar regulatory credential required by industry standards or a regulatory body to engage in the occupation.
- KK. “Separate classroom” means a physical location where occupational education or training occurs that is located a reasonable distance from the main school.
- LL. “Stand-alone course” is a single course, or one that can be offered independent of a program, which may take the form of a seminar, workshop, continuing education course, or other similar educational service. A stand-alone course may enhance or advance skills in an existing occupation. Courses from within a program that are offered independently or whereby students receive a Certificate of Completion and transcript must be approved as stand-alone courses.
- MM. “Synchronous” means the instructor(s) and students utilize in-person or distance education whereby the instructor monitors and directly interacts with students during scheduled class time, taking attendance and engaging with all students.
- NN. “Tuition” means the amount of money paid for a student’s education, including federal, state, or private funding, exclusive of costs paid for instructional materials such as books, tools, and supplies. This excludes employer paid training that is not required to be reimbursed by the student.

II. GENERAL AND ADMINISTRATIVE

- A. Each school shall prominently display its current Certificate of Approval to the public, prospective students, and other interested persons.
- B. Each school that allows tuition or fee financing through installment or deferred payment plans shall comply with the provisions of appropriate state and federal laws concerning consumer credit and truth-in-lending or any other such law related to consumer financing.
- C. The payment of all Board fees shall be timely made by the school online or by other approved means.
- D. The Division Director shall set the Board agenda; which agenda may be modified by the Board.
- E. All applications and forms submitted that require a fee as outlined below in the Fee Schedule must be complete within one year of receipt in accordance with the Division's policy. If the Division has communicated deficiencies that must be cured prior to approval but the applicant(s) fails to make necessary change(s) to meet requirements of the Act and these Rules, the application shall expire after one year, requiring the school to resubmit the application, fee and supporting documentation in order to be considered for approval.
- F. A school whose application has been denied or Certificate of Approval revoked, or individuals associated with such a school, including any owner, officer, agent, administrator, or instructor, may not submit a new application or be associated in any way with a new application for a period of one year.
- G. The Division may perform announced and unannounced site visits to the physical premises of a school at any time within the period of a Certificate of Approval to evaluate the school's ongoing compliance with the provisions of the Act and Rules.

- H. The Division may require a school to provide records, files, and/or documents within a requested time frame in electronic or, if approved by the Division, in a hard copy format.

FEE SCHEDULE

Effective Date April 1, 2026

FEE TYPE	FEE AMOUNT
Provisional In-State School: Initial Application for Certificate of Approval (COA) --includes up to five new Programs and Stand-Alone Courses. Any additional programs or stand-alone courses are subject to the Programs/Course fees listed below. Initial COA Application for Additional Campus	\$ 5,130.00 Per School \$ 2,565.00 Per Campus
Renewal In-State School: Standard COA – three (3) year period	\$ 2,052.00 Per School/Campus
Programs/Courses (Per Program and/or-Stand-Alone Course:): New Program/Stand Alone Course per Campus Major Revision Program/Stand Alone Course per campus Minor Revision Program/Stand Alone Course per campus	\$ 513.00 \$ 513.00 \$ 128.00
In-State Agent Permit:	\$ 308.00 Per Agent
In-State Agent Permit for Multiple Campus Locations <i>under same ownership with same school name:</i> One (1) Permit per agent—valid at all campus locations (Provisional or Standard COA)	\$ 308.00 Per Agent

Out-of-State Initial/Renewal: Initial application and annual renewal	\$ 2,565.00
Out-of-State Agent Permit per year <i>under same ownership <u>with same school name</u></i>	\$ 308.00 Per Agent
One (1) Permit per agent—valid at all campus locations	
Student Assessment: In-State and Out-of-State, Quarterly per Enrolled Student (out-of-state is Colorado resident that resides with-in Colorado receiving training or Colorado resident recruited to attend out-of-state school)	\$ 5.15 Per Enrolled Student (Subject to Change)
ADDITIONAL FEES	Per School
Change of School Location (per campus)	\$ 513.00
Change of School Name (per campus)	\$ 257.00
Change of School Ownership	\$ 5,130.00
Exemption Request Fee	\$ 308.00
Student Transcript for Closed School	\$20.00 Per Transcript
Failure to pay and/or late payment of Quarterly Student Assessment fees	1st violation: minimum \$100; 2 nd : minimum \$300; 3 rd : minimum \$500; each violation thereafter: \$500.
Failure to adequately and timely submit Annual Filings	\$500.00 minimum per violation per year

PLEASE NOTE:

1. Fees are NOT refundable.
2. Fees are established pursuant to § 23-64-122(1), C.R.S., “for the direct and indirect costs of the administration of” the Private Occupational Education Act of 1981.

III. MINIMUM STANDARDS

In addition to the minimum standards outlined in the Act, a school shall comply with the following standards and shall not be owned, operated by, or employ any person who is addicted to or dependent upon alcohol or any controlled substance or such person who is a habitual user of a controlled substance if the use, addiction, or dependence is reasonably found by the Board to present a danger to students, clients, or prospective clients.

A. Financial

1. To meet this minimum standard, the school, its owners, or guarantors shall demonstrate it has sufficient financial resources to:
 - a. Provide instructional services as described in its application for the full duration of any program or course of instruction, and
 - b. Make refunds as required by the Act.

B. Approval of Educational Services

1. Method of delivery. Schools shall offer only educational services through the method of delivery that has been approved by the Board. Any change to the method of delivery for educational services requires prior approval by the Board as a major program or stand-alone course revision.
2. Program or stand-alone course approval. All programs and stand-alone courses shall be submitted to the Board for review and approval.
 - a. New program(s) or stand-alone course(s). Any application for a new program or stand-alone course a school intends to offer after issuance of a provisional Certificate of Approval shall be submitted to the Board for review and approval prior to the proposed date of implementation.
3. Major program or stand-alone course revisions. All major program or stand-alone course revisions shall be submitted to the Board for review and approval prior to the proposed date of implementation.
4. Minor program or stand-alone course revisions. Minor program or stand-alone course revisions shall be submitted to the Division to evaluate compliance with minimum standards. The Division may refer any minor program or stand-alone course revision to the Board for review and determination, if necessary.
5. Additional review permitted. The Board may require new and/or revised educational services to be evaluated by qualified professionals.

6. Disciplinary action(s) by outside regulatory agency/accreditor. A school shall notify the Division within fourteen (14) days of any pending or final disciplinary action or withdrawal of approval by any other regulatory agency or accreditor with oversight authority of the school.
7. A school shall assess students prior to enrollment and shall only admit those who demonstrate a reasonable likelihood of success in completing the education/training and being employed in the field for which trained. A school shall retain documentation of this assessment in each student's record.
8. School closure. A school shall notify the Division in writing within twenty-four (24) hours of the school closing. The school shall provide the Division with required records following the closure as required by the Act and these Rules.
9. Externships/Internships. No internship or externship will be approved in a program if it requires students to be on duty more than eight hours per day for five consecutive days. Appropriate breaks must be included in the externship/internship schedule, pursuant to any and all existing state and federal laws.
 - a. An externship/internship must be under the coordination of a qualified instructor who meets minimum qualifications for instructional staff and has oversight of students' education at the externship/internship site.
 - b. To be considered an externship or internship, the program shall:
 - (1) Be part of the approved curriculum of the school,
 - (2) Have a written training plan for the program that specifies the expected educational outcome and a schedule of time, including an expected date of completion,
 - (3) Designate an on-site supervisor who will guide the student's learning and who will participate in the student's evaluations, and
 - (4) Be described in the school catalog and include the purpose and requirements of the course.
 - c. The student extern/intern is not to replace an employee.
 - d. Externships/internships may be paid or unpaid.

- e. If the externship/internship is part of the course requirements, students may not be considered as graduates or issued educational credentials until the externship/internship has been satisfactorily completed.
- f. A school shall maintain documentation of the externship/internship locations and available positions for each program. The school's documentation for each location and available position must include documentation from an authorized representative of the location verifying that the location will provide the specified number of positions for a defined timeframe that corresponds with the program requirements. All documentation verifying the externship/internship shall be maintained by the school and made available to the Division upon request.
- g. The number of students enrolled in a program may at no time exceed the number of available externship/internship positions.
- h. Location of externship/internship shall be a location other than that of the school/institution where a student commences all remaining educational requirements. A school on-site clinic/lab cannot be used as a substitute for a required off-site externship/internship.

C. Instructional Equipment, Facilities and Materials

- 1. Programs and stand-alone courses shall only be offered in institutional facilities that are appropriate for learning activities necessary to complete the occupational objective of the program or stand-alone course.
- 2. The equipment and facilities of each school shall conform to safety, health, and other applicable requirements of local, county, state, and federal agencies.
- 3. Equipment shall be maintained in good shape and materials shall be available in sufficient quantities to permit skilled development at required levels by all students.
- 4. Teaching aids, exclusive of basic supplies, must be as-listed in the school catalog and operable for student use.

D. Administrative Staff, Designated Agent and School Agent(s)

- 1. The school shall have sufficient administrative staff based on student enrollment and needs for educational and support services, including required record keeping.

2. On-site school director required. Each school shall designate an on-site school director for each approved campus. The on-site school director shall be responsible for administrative and instructional staff.
3. Designated agent. Each school shall identify and maintain a designated agent at all times. Any change to a school's designated agent shall be reported to the Division within fourteen (14) days.
4. Agent(s) in possession of agent's permit. Each school shall maintain at least one agent in possession of an agent's permit issued by the Division at all times. Only a person in possession of an agent's permit may sign as a school representative on student enrollment agreements.
 - a. A school shall maintain an accurate record of all approved agents at all times. A school shall report any removal of an agent to the Division within fourteen (14) days.
 - b. New agent(s). A school shall submit an application for an agent's permit to the Division for any person owning any interest in, employed by, or representing a school who enrolls, or who offers or attempts to secure the enrollment of, any person within Colorado for education in a school.
5. Action against staff by regulatory body. A school shall notify the Division within fourteen (14) days of any action taken against a regulatory credential held by a principal owner, officer, agent, or administrator of the school by any state or federal regulatory body.

E. Instructional staff

1. School responsible for instructional staff conduct. Each school shall be responsible for assuring and documenting that its instructional staff meet minimum qualifications.
 - a. Additions/changes to instructional staff. Each school shall notify the Division within thirty (30) calendar days of any new instructional staff or changes in employment status of existing instructional staff.
 - b. Action against instructor's regulatory credential(s). A school shall notify the Division within fourteen (14) days of any action taken against an instructor's regulatory credentials by any other regulatory agency or accreditor.

2. Sufficient instructional staff required. The school shall identify and maintain instructional staff for each program and stand-alone course, including having a sufficient number of qualified instructors to meet the needs of students. The student-teacher ratio for each program and stand-alone course shall be submitted with the program or stand-alone course application for approval by the Board. Once approved, the student-teacher ratio must not be exceeded at any time.
3. Minimum qualifications. All instructors employed by a school shall possess the following minimum qualifications to deliver educational services in the program area to be taught:
 - a. Experience for instructional staff with required regulatory credential. For occupations that require a regulatory credential to engage in the occupation, a minimum of two years' experience comprised of at least 4,000 hours of acceptable full or part-time employment/work experience must be documented. Regulatory credential(s) must be continuously maintained and in good standing at all times the instructional staff deliver educational services.
 - b. Experience for instructional staff without regulatory credential. For occupations that do not require a regulatory credential to engage in the occupation, either a minimum of five years' experience comprised of at least 10,000 hours of acceptable full or part-time employment/work experience must be documented, or successful completion of an accredited or Board approved program in the occupational area as well as a minimum of two years comprised of at least 4,000 hours of acceptable full or part-time equivalent employment/work experience is required. Work experience earned at an accredited or Board approved program after graduation from the program may be credited toward the two-year requirement provided the work performed is related to the occupational area.
 - c. Character of instructional staff. A school shall only employ instructors who are of good reputation and free of moral turpitude.

- (1) Past offense(s) involving moral turpitude. Consideration of past offenses involving moral turpitude (offenses involving an act of baseness, vileness, or depravity in private or social duties owed to individuals or to society) must bear a reasonable relationship to the activity of providing occupational education. Past offenses involving moral turpitude shall be given consideration at the time of application, however, past offenses do not automatically disqualify instructional staff. Instructional staff may meet minimum qualifications despite past offense(s) if they have been rehabilitated and accept the responsibilities of a law-abiding and productive member of society.
- d. Background check required for instructional staff interacting with students under 16 years of age. Instructional staff and prospective instructional staff who may be teaching in a school offering programs or stand-alone courses to students under sixteen years of age ("minor student") must submit fingerprints and pay the required fee to the Colorado Bureau of Investigation for the purpose of conducting a state and national fingerprint background check in accordance with § 23-64-110, C.R.S.
- (1) The Division Director shall give notice to any such instructor or prospective instructor when a fingerprint background check returned to the Board shows that the person has been convicted of, pled nolo contendere to, or received a deferred prosecution or deferred sentence for a felony or misdemeanor described in § 22-60.5-107(2)(b) or 2.5(a), C.R.S., or any other offense involving moral turpitude. The notice shall indicate that the instructor or prospective instructor may submit written data, views, arguments, or information with respect to the background check and any subsequent rehabilitation that would tend to show that he or she is prepared to accept the responsibilities of teaching minor students. The Division Director shall give notice to a school that employs or is considering employing an instructor subject to a background check that the instructor's or prospective instructor's qualifications are under review but the notice to the school shall contain no reference to or details of the results of the fingerprint background check.
 - (i) The Director will consider the results of the background check and the instructor's or prospective instructor's response to the notice and any other information deemed necessary to determining whether the instructor or prospective instructor is qualified. The instructor or prospective instructor will not be deemed qualified unless the instructor or

prospective instructor provides clear and convincing evidence and reasons establishing that he or she has been rehabilitated and is ready to accept the responsibilities associated with teaching minor students. Such a prospective instructor whose results of the fingerprint background check are under review by the Division Director, for such circumstances identified herein, shall not commence instruction of any student under the age of sixteen (16) until such time that the Division Director notifies the school and prospective instructor that a favorable qualification to instruct has been determined. The Director will notify the instructor or prospective instructor of the Director's determination. Notice to the school shall only include an indication of whether the instructor is qualified or unqualified.

- (ii) The instructor or prospective instructor may file an appeal to an adverse Director's decision concerning qualification to instruct based on criminal history to the Board within 20 days after notice. The appeal shall state in writing the reasons for appealing the notice denying the qualification, including the facts, circumstances and/or arguments supporting its appeal. In the event the Board denies an appeal, the instructor or prospective instructor may request a hearing in accordance with the State Administrative Procedures Act. A final order of the Board is subject to judicial review in accordance with § 24-4-106, C.R.S. in an administrative hearing on instructor qualifications, a certified copy of the judgment of a court of competent jurisdiction of a conviction, the acceptance of a guilty plea, a plea of nolo contendere or a deferred prosecution or deferred sentence shall be conclusive evidence of the court's action.
- (iii) All information related to the results of a fingerprint background check and any investigation of such results shall be treated as confidential data in accordance with § 23-64-109, C.R.S., except as necessary to conduct an investigation of qualifications, until such time as there may be a hearing in accordance with the State Administrative Procedures Act on the matter. A school that employs or is considering employing an instructor subject to a background check shall be notified when a review of instructor qualifications following submission of a

background check is complete. Notice to the school shall include only an indication of whether the instructor is qualified or unqualified.

- e. Continuing Competency. Instructional staff shall provide the school on a regular basis, but not less than every three (3) years, with sufficient and recent educational and employment/work experience to ensure up-to-date knowledge of content and practice to continue teaching in the occupational field for which they are employed to teach.
 - (1) Competency may be demonstrated by successful completion of courses from accredited or Board approved schools, occupational experience, workshops/seminars, or continuing education approved by a regulatory agency, organization or recognized professional association, or school directed education/training.
 - (2) If industry standards or a regulatory body maintain specific requirements for continuing competency in a given field or profession, instructional staff shall comply with the requirements.
- f. Annual performance evaluation required. Each school shall complete a written annual performance evaluation of the instructor performed by the on-site school director or other authorized school representative. The performance evaluation must include, at a minimum, an evaluation of the instructor's effectiveness in meeting the stated objectives of the course and properly and accurately maintaining student records for which the instructor is responsible under school policy, including but not limited to attendance, progress notes and grades and/or satisfactory completion of lessons, courses, or training programs.

4. Exceptions to Minimum Qualifications.

- a. Modeling instructors shall have a minimum of 1,000 hours of acceptable employment/work experience in modeling or related specialized occupations and completion of a modeling or specialized program in the occupational area(s) to be taught, or 2,000 hours of acceptable work/employment experience in the occupational area(s) to be taught.

- b. Tax preparation instructors shall have attained a minimum of 1,000 hours of employment/work experience in tax preparation within the last five years, 200 hours of such employment/work experience must have occurred within the last 24 months. In lieu of having acquired 200 hours within the last 24 months, the instructor may substitute a suitable tax preparation update course, which was successfully completed within the past 12 months, and which included at least five contact hours.
 - c. Securities instructors offering educational services for occupations regulated by the United States Securities and Exchange Commission are exempt from minimum qualification requirements for instructional staff.
 - d. General Education instructors offering educational services for General Education subject areas only are exempt from minimum qualification requirements for instructional staff.
- 5. Changes in instructional staff's criminal history. Instructional staff shall be required to notify a school within ten (10) days of any offenses involving moral turpitude that occur after the instructional staff's hire date at the school. A school that receives information regarding an offense involving moral turpitude by instructional staff shall notify the Division not later than twenty (20) calendar days from the date in which the school received notice of the offense involving moral turpitude, including the complete name of the instructional staff, the nature of the offense involving moral turpitude, and any pending law enforcement or judicial proceedings.
- 6. Instructor qualification file required. Each school shall maintain an instructor qualification file for each instructor employed. An instructor qualification file shall include, at a minimum:
 - a. Instructor application;
 - b. For an instructor teaching in occupational areas for which industry standards or a regulatory body require regulatory credentials:
 - (1) A copy of any educational credential (degree, certificate, or diploma) showing completion of a training or degree program at an accredited or Board approved school in the occupational area(s) to be taught, and
 - (2) A copy of any applicable regulatory credential(s);
 - c. For an instructor teaching in occupational areas for which industry standards or a regulatory body do not require regulatory credentials:

- (1) If applicable, a copy of any educational credential (degree, certificate, or diploma) showing successful completion of a training or degree program at an accredited or Board approved school in the occupational area(s) to be taught, and
 - (2) Documentation of required hours of employment/work experience in the occupational area(s) to be taught, verified by signature of the instructor and the on-site school director;
 - d. Annual performance evaluations; and
 - e. Documentation demonstrating continuing competency in the occupational field for which the instructional staff is employed to teach.
 - 7. Guest Instructors. A guest instructor is a person whose special experience or expertise in an area related to the subject matter to be taught will make a contribution to the educational services offered and whose use is to be limited to not more than 20% of the program or stand-alone course. Guest instructors must possess regulatory credentials if the industry or occupation requires, or be a registered product manufacturer or supplier. Students currently attending the school, or who attended the school at any time during the previous twelve (12) months, may not act as guest instructors. The school shall maintain a record of all guest instructors with the respective courses to which they contributed that documents the special experience or expertise of the person.
 - 8. Emergency Instructor Provision. A school owner/on-site school director experiencing a hardship in hiring instructional staff who meet minimum qualifications may petition the Board for permission to hire an instructor who does not meet minimum qualifications. The school shall provide the Board with a summary of the efforts made to secure the services of a qualified instructor and describe the requested person's suitability for the position. The Board may request additional information prior to approving or rejecting the petition and specify a period of time in which the emergency instructor may serve as instructional staff for the school.
- F. Requirements for Schools to offer Associate Degree Programs
- 1. All private occupational schools making application to grant associate degrees shall hold a Certificate of Approval by the Board.
 - 2. Schools offering an Associate Degree shall be accredited by an accrediting agency which is officially recognized by the United States Department of Education or the Council for Higher Education Accreditation.

3. All Associate Degree Programs offered by a school shall be approved by the Board.
4. Application Procedure. An approved school shall make a separate application to the Board for the approval of each associate degree program. The application shall clearly indicate the course of instruction for which the degree will be awarded. Information must be included in sufficient detail to indicate conformance with the following standards of instruction.
 - a. The curriculum in the appropriate associate degree program shall include a program of instruction which corresponds with general education curriculum course credits required in institutions that prepare the student to enter full-time, entry level employment in their chosen occupation.
 - b. Types of Associate Degrees:
 - (1) Associate of Arts (A.A.)
 - (2) Associate of Science (A.S.)
 - (3) Associate of Applied Science (A.A.S.)
 - (4) Associate of Occupational Studies (A.O.S.)
5. Admission Requirements. A student shall possess a high school diploma or a GED and be able to matriculate in an Associate Degree program.
6. Curriculum. The curriculum in the appropriate associate degree program of study will consist of courses and/or the occupational education area as approved by the Board. The appropriate associate degree program of instruction will correspond with the curriculum course credits required in institutions of higher education offering such associate degree programs. This means a minimum curriculum as defined below:
 - a. Associate of Arts (A.A.) - Degree Programs, requiring 45 quarter credit hours or 30 semester hours of general education courses (Arts, Humanities, Social or Behavioral Sciences, or one of the professional fields of emphasis). The range of credit hours is 60 semester or 90 quarter hours to 68 semester or 102 quarter hours. Associate of Arts degree programs are intended for transfer into baccalaureate degree programs with junior standing offered by senior colleges and universities.

- b. Associate of Science (A.S.) - Degree Programs, requiring 45 quarter credit hours or 30 semester credit hours of general education courses (Mathematical, Biological or Physical Sciences, or one of the professional fields' emphasis). The range of credit hours is 60 semester or 90 quarter hours to 68 semesters or 102 quarter hours. Associate of Science degree programs are intended to transfer into baccalaureate degree programs with junior standing offered by colleges or universities.
- c. Associate of Applied Science (A.A.S) - Degree Programs requiring 18 quarter credit hours or 12 semester credit hours of general education courses. The range of credit hours is 60 semester or 90 quarter hours to 75 semester or 108 quarter hours. Exceptions to the maximum may be granted by the Board if there is a demonstrated need. These programs are occupational in nature and are not intended for transfer to baccalaureate degree programs; however, certain courses may be accepted toward a bachelor's degree at some colleges and universities. Associate of Applied Science degree programs are intended to prepare students to enter full-time skilled, paraprofessional occupations.
- d. Associate of Occupational Studies (A.O.S) - Degree Programs. In addition to the minimum total credits of 90 quarter credit hours or 60 semester credit hours require only that the school justify each such program to the Board in terms of a logical sequence of courses which will assure adequate preparation for entry level employment in a particular occupational field. These programs are occupational in nature and are not intended for transfer to baccalaureate degree programs; however, certain courses may be accepted toward a bachelor's degree at some colleges and universities. Associate of Occupational Studies degree programs are intended to prepare students to enter full-time, skilled paraprofessional occupations.

7. Degree credit hours are computed as follows:

For each quarter credit hour awarded:

10 theory/lecture contact hrs. = 1 credit

20 laboratory contact hrs. = 1 credit

30 internship/externship contact hrs. = 1 credit

For each semester credit hour awarded:

15 theory/lecture contact hrs. = 1 credit

30 laboratory contact hrs. = 1 credit

45 internship/externship contact hrs. = 1 credit

Computation of hours may not be rounded up.

8. Faculty. Instructors teaching only general education courses in associate degree programs shall hold at least a baccalaureate degree with adequate preparation in areas the instructors are assigned to teach.
9. Cosmetology and related credit hours. The following only relates to cosmetology and related areas. The school catalog shall include at least the following information which is to be given to the student at the time of the execution of the enrollment agreement.

For all cosmetology schools credit hours are computed as follows:

30 theory/lecture contact hours = 1 semester credit
30 laboratory contact hours = 1 semester credit

30 intern/externship contact hours = 1 semester credit

G. School Catalog

1. Each school shall publish a catalog which shall include at least the following information:
 - a. The name and address of the school.
 - b. Catalog number and date of publication.
 - c. Table of contents.
 - d. Names of owners and officers, including any governing boards.
 - e. The school calendar, including holidays, enrollment periods and beginning and ending dates of terms, courses or programs as may be appropriate.
 - f. The school's enrollment procedures and admission requirements, including a postponement clause and late enrollment procedures, if permitted.
 - (1) Postponement clause. The school's policy regarding postponement of starting date and the effect on student's rights to a refund is to read:

"Postponement of a starting date, whether at the request of the school or the student, requires a written agreement

signed by the student and the school. The agreement must set forth:

- a. Whether the postponement is for the convenience of the school or the student, and
- b. The deadline for the new start date, beyond which the start date will not be postponed.

If the course is not commenced, or the student fails to attend by the new start date set forth in the agreement, the student will be entitled to an appropriate refund of prepaid tuition and fees within 30 days of the deadline in accordance with the school's refund policy and all applicable laws and Rules concerning the Private Occupational Education Act of 1981."

- g. A description of the school's placement assistance. If no assistance is offered, the school shall make this fact known.
- h. The school's attendance policy, including:
 - (1) Minimum attendance requirements,
 - (2) Circumstances under which a student will be placed on probation for unsatisfactory attendance,
 - (3) The conditions under which a student may be readmitted,
 - (4) Student leaves of absence, and
 - (5) Any fees resulting from student absence or make-up hours required for completion of the program.
- i. The school's policy concerning student progress and how the policy will be enforced, which shall include:
 - (1) How progress is measured and evaluated, including an explanation of the school's system for making progress reports to students and the system of grading used,
 - (2) The conditions under which a student may be readmitted if terminated for unsatisfactory progress, and
 - (3) A description of any probation policy and the circumstances under which a student may be terminated for unsatisfactory progress.

- j. The school's policy regarding student conduct, including causes for dismissal and conditions for readmission.
- k. A description of the school's facilities, teaching aids (exclusive of instructional materials), and equipment used for training.
- l. A description of each approved educational program or stand-alone course offered including objectives, prerequisites, tuition, fees, method of delivery, instructional materials, length of time allowed for completion of the program or stand-alone course, and number of lessons or units of instruction, as appropriate.
- m. The school's policy concerning credit granted for previous education, training, or experience, but the policy shall not impact the school's refund policy.
- n. A statement that the school does not guarantee the transferability of its credits to any other educational institution and that transferability is up to the receiving institution, unless the school has written agreement on file of current acceptability of such credits from other institutions.
- o. The school's cancellation and refund policy, which shall include the school's method of determining the official date of termination.
- p. In-state schools shall use a statement printed in the catalog to read, "Approved and Regulated by the Colorado Department of Higher Education, Private Occupational School Board." Out-of-state schools shall use a statement printed in the catalog to read, "Agents approved by the Colorado Department of Higher Education, Private Occupational School Board."
- q. The school's policy and procedures for student requests for educational credentials, including the school's transcript release policy as required by § 23-5-113.5, C.R.S.
- r. The school's grievance policy and protocol for reviewing and resolving student complaints, appeals, or claims. This section must also include:
 - (1) A statement that students or their guardian may file a complaint online with the Board through the Division's established process within two years after the student's last date of attendance at the school, or at any time prior to the commencement of training,
 - (2) The web address and phone number for the Division of Private Occupational Schools, and

- (3) The complaint policy shall be displayed in a type-size no smaller than that used to meet any other requirements of this section.
- s. Course/programs not regulated by the Division but offered by the school should clearly be designated as such in the school catalog.
- 2. Addendum(s) or supplemental page(s). Any addendum or supplemental page may be used as part of the school catalog provided it is used in such a way as to become an effective part of the catalog. Any addendum or supplemental page shall show an effective date and shall be presented to each prospective student with the school catalog prior to execution of any enrollment contract.
- 3. Changes to School Catalog. Any changes to approved school catalogs, including addendums or supplemental pages, shall be submitted to the Division for review. The school shall not print or distribute the new catalog prior to confirmation of review by the Division.

H. Student Enrollment Agreement

- 1. Student enrollment agreements for educational service shall comply with the provisions of § 23-64-126(1), C.R.S., and be completed, dated, and signed by the student in hard copy or a legally accepted electronic signature and by an agent in possession of an agent's permit prior to the time instruction begins.
- 2. The school shall retain a copy of the student enrollment agreement in the student's record and one copy shall be delivered to the student at the time of execution or by return mail when solicited by mail.
- 3. The student enrollment agreement shall include information that will clearly and completely define the terms of the agreement between the student and the school, including at least the following:
 - a. The name and address of the school and the student;
 - b. The program(s) or stand-alone course(s) the student is enrolling in, the date training is to begin, and the required date of completion from the program or stand-alone course;
 - c. Admission requirements for the program or stand-alone course the student is enrolling in;

- d. The total costs incurred by the student in order to complete the program or stand-alone course. All costs shall be itemized and include costs for tuition, fees, books and instructional materials, and any other expenses necessary to complete the training. The student enrollment agreement shall outline the method of payment and the payment schedule, if any;
 - e. The school's refund policy, including the method of determining the official date of termination, displayed in a type-size no smaller than that used to meet any other requirements of this section;
 - f. A statement acknowledging receipt by the student of a current/approved copy of the school catalog (including any addendums or supplemental pages) and a copy of the completed student enrollment agreement;
 - g. A statement that a student or their guardian may file a complaint with the Board online through the Division's established process within two years from the student's last date of attendance, or at any time prior to the commencement of training, as follows:
 - (1) This section shall include the web address and phone number for the Division of Private Occupational Schools, and
 - (2) The complaint policy shall be displayed in a type-size no smaller than that used to meet any other requirements of this section and shall precede any other grievance/complaints policies referenced; and
 - h. In-state schools shall use a statement printed in the enrollment agreement to read, "Approved and Regulated by the Colorado Department of Higher Education, Private Occupational School Board." Out-of-state schools shall use a statement printed in the enrollment agreement to read, "Agents approved by the Colorado Department of Higher Education, Private Occupational School Board."
 - 4. Student enrollment agreements must reflect and be consistent with the school catalog in effect at the time of enrollment.
 - 5. Any changes to approved student enrollment agreements, including addendum(s), shall be submitted to the Division for review. The school shall not print or distribute a new student enrollment agreement prior to confirmation of review by the Division.
- I. Student Records

1. Educational credentials. A diploma, certificate of completion, degree, record of completion and/or transcript shall be conferred only upon the successful completion of the program or stand-alone course by a student.
2. Student record required. Each school shall maintain student records in electronic format for each student that enrolls in a program or stand-alone course at the school for any period of time.
3. Records retained for six years. Each school shall maintain a student record for each student that enrolls in a program or stand-alone course at the school for a minimum of six years from the student's last date of attendance at the school, which shall include at least the following:
 - a. A copy of the student enrollment agreement and receipts or other instruments relating to the student's payment for educational services;
 - b. Student information including:
 - (1) Student name,
 - (2) Permanent or other address at which the student may be reached,
 - (3) Records relating to financial payments and refunds,
 - (4) Record of attendance as determined by the school, and
 - (5) Progression notes and grades;
 - c. Date of completion or termination of training and the reason(s) as determined by the school;
 - d. Record of any student grievance and documents detailing any subsequent resolution;
 - e. Copies of all correspondence or other records relating to the recruitment, enrollment, and placement of the student, including information collected by the school to evaluate whether the student demonstrates a reasonable likelihood of success to complete the education/training and be employed in the field for which the student is trained; and
 - f. Educational credentials including a transcript, certificate of completion, diploma, or degree, if applicable.

4. Records retained indefinitely. Educational credentials, including student transcripts, certificates of completion, diplomas, or degrees must be retained by the school in perpetuity.
 - a. Student transcripts.
 - (1) Student transcripts will be provided to the students after graduation/completion of training within a reasonable time and according to statute requirements, not to exceed 45 days.
 - (2) Upon request, each school shall provide an official transcript within seven (7) days to the student who has satisfied all financial obligations currently due and payable to the school or who meets the criteria set forth in § 23-5-113.5(2)(b), C.R.S., which provides, in relevant part, that a postsecondary institution shall not refuse to provide a transcript or diploma to a current or former student:
 - (a) On the grounds that the student owes a debt other than a debt for tuition, room and board fees, or financial aid funds; or
 - (b) If the student can demonstrate that the transcript or diploma is needed for one of the following exemptions:
 - (i) A job application,
 - (ii) Transferring to another postsecondary institution,
 - (iii) Applying for state, federal, or institutional financial aid,
 - (iv) Pursuit of opportunities in the military or National Guard, or
 - (v) Pursuit of other postsecondary opportunities.

Per the statute, subsection III.I. 4.a.(2) of this Rule does not apply to a student who is foreign and present in the United States on a nonimmigrant visa.

 - (3) Requirements for transcript. A transcript of the individual student's records of achievement must be maintained in a form that provides at least the following information:

- (a) Name of student,
 - (b) Name of school,
 - (c) Title of program or stand-alone course, including total number of hours of training received, the number of hours and method of delivery for each course, and dates of enrollment,
 - (d) Grade record of each course, lesson, or unit of instruction and the cumulative grade for the program or stand-alone course, and
 - (e) Explanation of grading system.
- b. Certificate of completion, diploma or degree.
 - (1) Upon request and if applicable, each school must provide a certificate of completion, diploma, or degree within a reasonable amount of time, not to exceed 60 days, to the student who has satisfied all academic and financial obligations currently due and payable to the school, or who meets the criteria set forth in § 23-5-113.5(2)(b), C.R.S., which provides, in relevant part, that a postsecondary institution shall not refuse to provide a transcript or diploma to a current or former student:
 - (a) On the grounds that the student owes a debt other than a debt for tuition, room and board fees, or financial aid funds; or
 - (b) If the student can demonstrate that the transcript or diploma is needed for one of the following exemptions:
 - (i) A job application,
 - (ii) Transferring to another postsecondary institution,
 - (iii) Applying for state, federal, or institutional financial aid,
 - (iv) Pursuit of opportunities in the military or National Guard, or
 - (v) Pursuit of other postsecondary opportunities.

Per the statute, subsection III.I.4.c.(2) of this Rule does not apply to a student who is foreign and present in the United States on a nonimmigrant visa.

- (2) Requirements for certificate of completion, diploma, or degree. A certificate of completion, diploma, or degree of the individual student's records of achievement must be maintained in a form that provides at least the following information:
 - (a) Name of student,
 - (b) Name of school,
 - (c) Title of program or stand-alone course, including total number of hours of training received and date of completion, and
 - (d) A signature of an instructor or the on-site school director.
- 5. A school may use a third-party transcript/record retention company to maintain records if the school obtains prior approval from the Division. A school shall provide the Division with detailed information regarding where the records and transcripts are maintained, and notify the Division of any changes related to the record retention company used by the school or location of the records within thirty (30) days.
- 6. Student records in event of school closure. In the event of closure of a school, the school shall deposit with the Division all educational, financial, or other records as described below in electronic format. These records shall be submitted to the Division within sixty (60) days of school closure. Any delay in record submission or any missing records shall be accounted for.
 - a. Records required.
 - (1) Student educational records including transcripts, records of completion, certificates of completion, diplomas, and degrees for all students since the school began operation;
 - (2) Financial records, including student enrollment agreements, receipts or ledger cards or record of student payments, and refund calculations, if applicable, for all students who attended the school for two years prior to the closure; and

- (3) A student roster including contact information (phone and e-mail address) of all students who attended the school for two years prior to the closure.
- b. Exceptions to record production upon closure.
 - (1) It is acceptable for a school to maintain its records once it is no longer operating as a Division-approved school if the school is continuing to operate in other locations or has met an approved exemption.
 - (2) It is acceptable for a school to use a third-party transcript/record retention company to maintain their records following a school closure if the school provides the Division with detailed information regarding where the records and transcripts are maintained and receives approval from the Division.
- c. Voluntary closure of school. In the event of voluntary closure of a school, the school owner or on-site school director shall:
 - (1) Provide student records required in event of school closure, as specified in these Rules, and
 - (2) Provide a record of the status of all students currently enrolled whose training has not been completed within forty-eight (48) hours following school closure.

IV. APPLICATION FOR CERTIFICATE OF APPROVAL AND SURETY REQUIREMENTS

A. School Name

The complete legal name and location of each school shall be clearly stated in its application for a Certificate of Approval.

B. Authority to Execute Applications

At the time an application is made, the following individual(s) shall have authority to execute documents on behalf of the applicant:

1. If the applicant is a corporation, the document must be executed by the president of the corporation or person(s) designated by the corporate Board.
2. If the applicant is a limited liability corporation, the document must be executed by a member with authority to execute on behalf of the limited liability corporation.
3. If the applicant is a partnership, the document must be executed by a partner with authority to execute on behalf of the partnership.
4. If the applicant is an individual, the document must be signed by the individual.

C. Franchise Agreement

A school operating under any form of franchise agreement must file said franchise agreement and all attachments thereto with the Board as a part of its application for a Certificate of Approval. No franchise school shall be approved unless the franchise agreement contains a provision that the franchise shall not be terminated by the franchiser or the franchisee by reason of default or otherwise, until sufficient arrangements, as determined by the Board, shall have first been made to ensure the completion of training of students enrolled in said school; and for the appropriate preservation and/or transfer of pertinent school and/or student records to the Division.

D. School Sites

1. Physical location. An applicant shall identify a physical location in its application that is suitable for use in providing educational services the applicant intends to offer.

2. Schools with multiple locations. Schools under common ownership which offer educational services and maintain ongoing individual facilities, faculty or students shall be considered as independent entities and required to apply for and obtain a Certificate of Approval for each facility.
3. Temporary off-site educational offering. A school that intends to offer educational services on an intermittent schedule that does not represent a consistent pattern at locations other than the approved school site as described above must notify the Division thirty (30) days prior to each program or stand-alone course start date. No exterior or interior school emblem/logo is to be displayed at times other than during approved sessions. This notification shall include:
 - a. Date of educational service and the program or stand-alone course to be offered,
 - b. Length of program or stand-alone course,
 - c. Number of students anticipated,
 - d. Location of facility (complete physical address),
 - e. Description of facility, including square feet, type of facility, etc.,
 - f. Instructional staff providing educational services at the location (other than the approved school site), and
 - g. New surety calculation form and, if appropriate, evidence of a surety bond or surety alternative to cover all students, including those enrolled in a program or stand-alone course taking place at a location other than the approved school site.

This would be classified as a temporary offsite educational offering not to exceed three months and would not require a separate Certificate of Approval. However, this temporary offsite educational offering would fall under the jurisdiction of the

school conducting the educational services and that school is responsible for

maintaining compliance with the Act and these Rules within the scope of its Certificate of Approval.

4. Separate classroom(s). A separate classroom may be used if the school obtains approval from the Division prior to offering educational services from the separate classroom. A site visit will be conducted prior to approval.

5. Change of physical location. A school shall submit an application for change of location not later than thirty (30) days prior to moving a school site. The Division shall have authority to approve applications for change of location.

E. Financial

1. Provisional certificate of approval. At the time application is made for a provisional Certificate of Approval, the applicant shall provide a statement of projected operations for a twelve (12) month period from the financial statement date.
2. Renewal application for Certificate of Approval. A school submitting a renewal application for a Certificate of Approval shall provide at a minimum a complete set of compiled financial statements which includes a cover sheet, balance sheet, income and expense statement, source and use statement and all supportive notes, prepared by an independent public accountant or a certified public accountant using a format which reflects generally accepted accounting principles and procedures.
3. Parent corporation financial information. A school which is a subsidiary of another corporation shall submit to the Board as a part of the school's application current financial information about the parent corporation including separate financial statements pertinent to the school.

F. Surety Bonds and Surety Bond Alternatives

1. General requirements. At the time application is made for a Certificate of Approval, the applicant shall file with the Division evidence of a surety bond or surety alternative which meets the requirements set forth in the Act and these Rules.
 - a. Each school shall file evidence of one surety bond or surety alternative covering the school and its agents.
 - b. Amount of surety bond or surety alternative. The surety bond or surety alternative submitted with an application for a Certificate of Approval shall be in the amount required by § 23-64-121(3), C.R.S.
 - c. Surety calculation form required. Each application for a Certificate of Approval shall include a bond calculation form signed by an authorized representative of the school showing in detail the calculations made pursuant to § 23-64-121, C.R.S., and explaining the method used for computing the amount of the surety bond or surety alternative.
2. Surety bond. In order to be approved by the Board, an applicant must file with its application evidence of a surety bond that is:

- a. Executed by the applicant and by a surety company authorized to do business in Colorado,
 - b. In a form acceptable to the Division,
 - c. Conditioned to provide indemnification to any student or enrollee of an in-state or out-of-state school or his/her parent or guardian determined by the Board to have suffered a loss of tuition or any fees as a result of violation of any minimum standard or as a result of a holder of a Certificate of Approval ceasing operation,
 - d. Assigned to the Division of Private Occupational Schools, and
 - e. A clear, clean electronic copy of an original bond.
- 3. Savings account – surety alternative. In lieu of a surety bond, an applicant may file with its application an assignment of savings account that is:
 - a. In a form acceptable to the Division,
 - b. Executed by the applicant and by a state or federal savings and loan association, state bank or national bank which is doing business in Colorado and whose accounts are insured by a federal depositor's corporation, and
 - c. Assigned to the Division of Private Occupational Schools.
- 4. Timed certificate of deposit – surety alternative. In lieu of a surety bond, an applicant may file with its application a timed certificate of deposit that is:
 - a. Executed by the applicant and by a state or federal savings and loan association, state bank or national bank which is doing business in Colorado and whose accounts are insured by a federal depositor's corporation,
 - b. In a form acceptable to the Division, and
 - c. Either:
 - (1) Payable to the Division of Private Occupational Schools,
 - (2) In the case of negotiable certificate of deposit, is properly assigned without restriction to the Division of Private Occupational Schools, or

- (3) In the case of nonnegotiable certificate of deposit, is assigned to the Division of Private Occupational Schools by assignment in a form satisfactory to the Division.
- 5. Irrevocable letter of credit – surety alternative. In lieu of a surety bond, an applicant may file with its application an irrevocable letter of credit that is:
 - a. In a form acceptable to the Division,
 - b. Assigned to the Division of Private Occupational Schools,
 - c. Conditioned to provide indemnification to any student or enrollee of the school or a parent or guardian of any student determined by the Board to have suffered loss of tuition or any fees as a result of violation of any minimum standard or as a result of a holder of a Certificate of Approval ceasing operation, and
 - d. Executed by the applicant and by a state or federal savings and loan association, state bank or national bank which is doing business in Colorado and whose accounts are insured by a federal depositor's corporation.
- 6. Any entity in possession of a surety alternative submitted as part of an application for a Certificate of Approval must have financial resources equal to or exceeding the maximum surety amount required to be maintained by the school.
- 7. The Board may make demand on the surety of a school that has ceased operation as authorized in § 23-64-121(5), C.R.S.
 - a. Students enrolled at time of school ceasing operations. To the extent that the school's records allow, the Division may provide written notice to students who are or may be impacted by the school closure. Any notice or communication by the Division will be directed to the students at the contact information provided by the school.
 - (1) Documentation required for claims for prepaid, unearned tuition. Any claim for a student's prepaid, unearned tuition must be accompanied by necessary documentation, including a completed student enrollment agreement and receipts or other documentation demonstrating payment(s) made by the student for the amount claimed.
 - b. The Division will use the amount of the surety to secure train-outs for students impacted by the school's closure or to issue refunds for students' prepaid, unearned tuition.

- c. Division administrative costs. If surety exceeds the amount necessary to secure train-out and/or issue refunds to students impacted by a school ceasing operations, the remainder may be retained by the Division as reimbursement up to the amount of any actual administrative costs incurred by the Division that are associated with the school closure and documented as such.

G. Types of Certificates of Approval

- 1. Provisional Certificate of Approval. Upon review of an initial application for a Certificate of Approval, the Board may issue a provisional Certificate of Approval to a school. The provisional Certificate of Approval shall be effective for more than one (1) year and less than two (2) years.
- 2. Certificate of Approval. Upon satisfactory demonstration of a school's operation during the provisional approval period, the Board may issue a school a standard Certificate of Approval, effective for three (3) years.
- 3. Conditional Certificate of Approval. The Board may place conditions upon approval of an application for a provisional or standard Certificate of Approval to address regulatory requirements, educational standards, correct deficiencies or impose restrictions. Duration of conditional approval shall be determined on a case-by-case basis by the Board, not to exceed one (1) year.
- 4. Application for change of ownership
 - a. An application for change of ownership shall be filed for approval by the Board whenever a change or transfer of the school's control or majority ownership interest occurs. A change of ownership includes but is not limited to a sale, merger, acquisition, inheritance, or restructuring.
 - b. Timing of change of ownership. The change of ownership shall not occur until the Board approves the application for change of ownership submitted by the proposed new owners. If the change of ownership occurs before the Board reviews and determines an application for a change of ownership, the Board may treat the application as an application for a provisional Certificate of Approval and require payment of the fee for a provisional in-state school.
 - c. Seller responsibilities. The seller, prior to the effective date of the change of ownership, shall notify the Board in writing of the pending sale and submit a roster of students currently enrolled and a detailed written plan outlining the process for transfer of all student records to the proposed new owner.

- (1) Maintain minimum standards. The seller is required to maintain minimum standards for the school until the change of ownership is approved by the Board, including but not limited to maintaining adequate surety coverage and oversight of instructional and administrative staff, and if applicable, continuing to administer and fund student financial aid.
- d. Proposed new owner responsibilities. The proposed new owner shall make application for change of ownership on electronic format as prescribed by the Board and shall include all information and documentation as specified in the application.
- e. The Board may review a change of ownership application on a case-by-case basis if, after initial review, the Board determines that the seller or proposed new owner has circumstances beyond their control that fall outside the Rule as written above.

V. ONGOING FILING REQUIREMENTS

- A. Annual filings. Each school holding a Certificate of Approval shall file annually on or before July 31st with the Division a bond calculation, student enrollment and graduate/completion data, placement statistics, instructional staff, and an attestation as follows:
1. Bond calculation. Each school holding a Certificate of Approval shall file annually a surety calculation form justifying the continued adequacy of the surety bond or surety alternative being maintained by the school. The calculation shall be based on the amount of maximum prepaid tuition and fees collected and held at any one time during the calendar year.
 2. Student enrollment and graduate/completion data. Each school shall file annually student enrollment and graduate/completion data consistent with the following:
 - a. Name/identification of the program(s) or stand-alone course(s) for which certificates, diplomas or associate degrees were awarded,
 - b. The name of each student who successfully completed each program or stand-alone course within the annual reporting period, and
 - c. The race, ethnicity, and gender data of students who successfully completed each program or stand-alone course, if known to the school.
 3. Placement statistics. Each school which offers or advertises placement assistance for any course or instruction shall file with the Division its placement statistics as follows for each program for the preceding year.
 - a. The number of graduates who requested placement assistance,
 - b. The number of graduates who received job offers for which they were trained, and
 - c. The number of graduates who received job offers in a related area for which they were trained.
 4. Instructional Staff. Each school shall file annually a list of all instructional staff employed by the school within the annual reporting period and identify the program(s) or stand-alone course(s) in which the instructional staff taught or provided educational services to students.
 5. Reporting of transcript/certificate withholding data.

- a. As required by § 23-5-113.5, C.R.S., each school shall report the number of students for whom the school is withholding official transcripts, diplomas, and registration privileges.
 - b. As required by § 23-5-113.5, C.R.S., each school shall report the number of past due student accounts assigned to third-party collection agencies.
6. Attestation by qualified school representative. A school's annual filing shall include the printed name and written or electronic signature of the school representative submitting the document or filing and include an acknowledgement that the school representative affirms under penalty of law that the information provided is true and complete and that all student records for the reporting period are maintained as required by the Act and these Rules.
- B. Quarterly filings. Each school shall file with the Division on a quarterly basis (on or before January 15, April 15, July 15, and October 15 of each year) the number of students currently enrolled in the school, even if no student is currently enrolled, and a student assessment fee in an amount provided in these Rules.
- C. Evidence of continued surety coverage. Each school shall submit to the Division on an annual basis evidence of continued surety coverage pursuant to a surety bond or surety alternative as required by the Act and these Rules.
 1. Surety bond. A school shall submit a continuation certificate to the Division no less than fifteen (15) days prior to the renewal date of the surety bond confirming the next term of coverage.
 2. Timed certificate of deposit. Schools that have assigned a certificate of deposit to the Division as a surety alternative must submit a bank statement or other acceptable verification from the bank within fifteen (15) days of the maturity date or as requested by the Board. The bank statement must show that the certificate of deposit account remains open, the account number, the amount of the Certificate of Deposit, and the next maturity date/ term.
 3. Assigned savings account. Schools that have assigned a savings account to the Division as a surety alternative must submit annually, or as requested by the Board, a current bank statement or other acceptable verification from the bank confirming the account remains open and assigned to the Division. The bank statement must show the savings account number and the balance of the savings account.

4. Irrevocable letter of credit. Schools that have assigned an irrevocable letter of credit to the Division as a surety alternative must submit verification that the letter of credit requirements are still being met and that the irrevocable letter of credit remains in effect within fifteen (15) days prior to the expiration date or as requested by the Board. The verification must include the letter of credit number, the amount, and the next expiration date or term, if applicable.
5. Changes to surety coverage. A school shall notify the Division in writing of any anticipated change in surety coverage at least fifteen (15) days prior to the expiration or maturation of a school's current surety bond or surety alternative.

VI. AGENTS

- A. Each school shall be responsible for the conduct of its agents in the performance of their duties and shall select each of them with the utmost care, provide them with adequate training and arrange for the regular and proper supervision of their work.
- B. The agent shall not use the availability of student aid as an inducement.
- C. No school shall conduct surveys for the purpose of developing enrollment leads near (3 blocks or less) any state or federal social services program center (i.e., welfare, food stamps, unemployment, etc.).
- D. A school is allowed to solicit in public places provided that the name and address of the school is displayed.
- E. An agent's permit is not required for referrals.

VII. DECEPTIVE TRADE AND SALES PRACTICES

As clarification and in furtherance of the protections against the deceptive trade and sales practices outlined in the Private Occupational Education Act of 1981, as amended, a school shall comply with the following:

- A. A guarantee of placement shall not be falsely promised or implied.
- B. If a school located within the State of Colorado refers to the fact that it is approved, the school will use the following phraseology as it pertains to its approved educational programs or courses only: "Approved and Regulated by the Colorado Department of Higher Education, Private Occupational School Board."
- C. Distance education shall be disclosed in the school's advertising and promotional materials that distance education is the primary instructional methodology.

- D. A school or other representative shall not falsely or deceptively represent that the school has restrictions on enrollment as to number, date of submission of application or similar false representations.
- E. A school or its agents and representatives shall not make or perpetuate any false or deceptive statements in regard to any other postsecondary school or college, whether public or private, nor shall a school or agent recruit students who are currently enrolled in another school.
- F. A school shall advertise only in its approved name.
- G. A school shall include the school name, a phone number, street address, city, and location where training is to be offered in all print advertising including electronic media.
- H. A school shall not represent directly or by implication that there is a substantial demand for persons completing any of the programs offered by the institution unless the institution has a reasonable basis for the representation documented by competent, objective, and statistically valid data.
- I. A school shall clearly indicate in its advertising and promotional materials that education and/or occupational training is being offered.
- J. A school may use only testimonials that accurately reflect current practices of the institution or current conditions or current employment opportunities in the field. Such testimonials may be used if prior written consent is obtained and no remuneration or other consideration is made for either the consent or the use of the endorsement.
- K. A school may advertise that it is endorsed by manufacturers, business establishments, organizations or individuals engaged in the line of work for which it provides training, if the school has written evidence of this fact and this evidence is made available to the student.
- L. No school may advertise “accredited” unless such status has been received and maintained from an accrediting body currently listed as recognized by the U.S. Secretary of Education or is accredited by a programmatic accrediting body recognized by the Council for Higher Education Accreditation as having the ability to accredit the freestanding, single purpose institution of construction education. This refers to the U.S. Department of Education’s List of Agencies (Eff. Oct. 2019), available electronically at <https://ope.ed.gov/dapip/#/agency-list> (later amendments not incorporated), or the Council for Higher Education Accreditation’s Directory of Recognized Accrediting Organizations (Updated July 2021), available electronically at <https://www.chea.org/chea-recognized-accrediting-organizations> (later amendments not incorporated). The U.S. Department of Education is located at 1244 Speer Blvd., Ste. 310, Denver, CO 80204. The Council for Higher Education Accreditation is located at One Dupont Circle NW, Suite 510, Washington, DC 20036. The Colorado Division of Private

Occupational Schools maintains a copy available for public inspection at 1600 Broadway, Ste. 2200, Denver, CO 80202, during regular business hours. Upon request, the Colorado Division of Private Occupational Schools will provide an electronic copy for free or a printed copy for a reasonable per page charge.

- M. No school may offer access to Title IV funds without approval to participate in the Title IV student federal fund program from the United States Department of Education. This refers to the Higher Education Act of 1965, P.L. 89-329, § 401, 79 Stat. 1219, 1232-1254 (1965), available electronically at <https://www.govinfo.gov/content/pkg/STATUTE-79/pdf/STATUTE-79-Pg1219.pdf>. Later amendments not incorporated. The U.S. Department of Education is located at 1244 Speer Blvd., Ste. 310, Denver, CO 80204. The Colorado Division of Private Occupational Schools maintains a copy available for public inspection at 1600 Broadway, Ste. 2200, Denver, CO 80202, during regular business hours. Upon request, the Colorado Division of Private Occupational Schools will provide an electronic copy for free or a printed copy for a reasonable per page charge.
- N. A school shall not advertise as an employment agency or the equivalent.
- O. A school shall not deceptively advertise in conjunction with any other business or establishment.
- P. A school may not follow-up employer help wanted advertisement with offers of training.
- Q. Any school which has an agency shall not advertise in the help wanted section for that agency.
- R. Any school or agency which offers classes at “no charge” but receives direct or indirect payment of fees or other pecuniary benefits or considerations, “for other services including publications, photo sessions and workshops” is considered to be a school and is required to hold a Certificate of Approval from the Board.
- S. Students who apply for and properly represent their financial aid application and do not qualify for financial aid within the first two weeks of classes and are accepted on the basis of forthcoming financial aid eligibility shall not be referred to a collection agency.
- T. Institutions placing advertisements in classified columns of newspapers or other publications to attract students must use only classifications such as: “Education,” “Schools,” or “Instruction.” Headings such as “Help Wanted,” “Employment,” “Career Opportunity,” or “Business Opportunities” may be used only to procure employees for the institution.

- U. Any income sharing agreements, employer sponsored tuition reimbursement agreements, or any other method of tuition financing must be clearly detailed and approved by the Division or Board prior to implementation. A clearly written agreement signed by the approved school agent and student must be executed and maintained in perpetuity.

VIII. REFUND POLICY

- A. The official date of termination or withdrawal of a student shall be determined in the following manner:
 - 1. The date on which the school is noticed to be the student's last date of actual attendance,
 - 2. The date on which the student violates published school policy which provides for termination, or
 - 3. Should a student fail to return from an excused leave of absence, the effective date of termination for a student on an extended leave of absence or a leave of absence is the earlier of the date the school determines the student is not returning or the day following the expected return date.
- B. Refunds must be calculated from the official date of termination or withdrawal and calculated on the period of time designated on the enrollment agreement executed with the student and must be made within thirty (30) days from the official date of termination.
- C. Application/registration fees may be collected in advance of a student signing an enrollment agreement; however, all monies paid by the student will be refunded if the student does not sign an enrollment agreement and does not enter school.
- D. No student shall be continued on an inactive basis in violation of school policy without written consent of the student. Inactive students must be terminated within 30 days of the next available start date and refunded appropriate prepaid tuition and fees at that time.
- E. Any refund of tuition or fees paid by a sponsoring agency or individual on behalf of a student will be returned to the sponsoring agency or individual, rather than the student.

IX. COMPLAINTS

- A. The school shall attempt to resolve internally filed or noticed student complaints promptly and fairly in accordance with the procedures stated in its grievance policy and shall not subject a student to punitive action because the student filed a grievance/complaint with the school or the Board.

- B. Complaints or claims pursuant to §§ 23-64-121(4)(a) or 23-64-124, C.R.S., may be filed electronically with the Board through the Division's established process within two years after the student's last date of attendance at the school, or at any time prior to the commencement of training.
- C. The Board and/or Division may initiate an investigation. The Board may issue a notice of noncompliance, with or without a complaint, at any time that it has reason to believe that a school has violated or is violating the Act or Rules.

X. STATE ADMINISTRATIVE PROCEDURES ACT

All final decisions made by the Board regarding issuance, denial, and revocation of all types of Certificates of Approval, agent permits and instructor qualifications according to § 23-64-129, C.R.S., will be under the provisions of the "State Administrative Procedures Act", article 4 of title 24, C.R.S.

XI. DISCIPLINARY ACTIONS

- A. The Board may issue a cease and desist order, deny, suspend, revoke or place on probation a school's Certificate of Approval or agent's permit if the applicant or holder:
 - 1. Violates or fails to comply with any provision of the Act or these Rules established pursuant to the Act;
 - 2. Uses fraud, misrepresentation, or deceit in applying for a Certificate of Approval or agent's permit or in complying with ongoing reporting requirements;
 - 3. Is convicted of or has entered a plea of *nolo contendere* or guilty to or has received a deferred sentence or a deferred prosecution for a felony;
 - 4. Violates probation;
 - 5. Uses deceptive advertising or deceptive trade and sales practices;
 - 6. Fails to notify the Division in writing within fourteen (14) days of any action which changes the school's status with the United States Department of Education, any other state or federal regulatory body, accrediting body, trade or membership association, or any national association or organization. This includes any adverse or disciplinary action, including but not limited to, probationary status; or
 - 7. Fails to notify the Division in writing within fourteen (14) days of any disciplinary action taken against a regulatory credential held by a principal owner, officer, agent, administrator, or instructor of the school by any state or federal regulatory body.

- B. Actions Available. The Board may take one or more of the following actions against a school's Certificate of Approval or an agent's permit:
1. Notice of Noncompliance. If the Board determines upon reasonable belief that a school or agent has violated or is violating one or more provisions of the Act, these Rules, or an order of the Board, the Board shall issue a notice of noncompliance which includes the following:
 - a. The information possessed by the Board which supports or caused the Board to form a reasonable belief that a school or agent has violated or is violating the Act, these Rules, or an order of the Board, and
 - b. A period of time within which the school or agent may submit written data, views, arguments, or information regarding the information provided in the Notice of Noncompliance and any steps taken to eliminate the reason(s) for the Notice of Noncompliance.
 2. Notice of Charges. The Board may choose to revoke a Certificate of Approval or agent's permit after considering the information provided in a Notice of Noncompliance and any written data, views, arguments, or information submitted by a school or agent in response to a Notice of Noncompliance.
 3. Limited suspension of program or stand-alone course approval. The Board may suspend its approval of a program or stand-alone course if the Board has a reasonable belief that the program or stand-alone course does not comply with one or more of the provisions of the Act, these Rules, or an order of the Board.
 4. Summary Suspension. If the Board has a reasonable belief that a school or agent has willfully and deliberately violated the Act, these Rules, or an order of the Board, or that the public health, safety, or welfare imperatively requires emergency action, the Board may summarily suspend a Certificate of Approval or agent's permit pending a hearing, which shall be promptly instituted and determined.
- C. The Board may use an administrative law judge employed by the Office of Administrative Courts in the Department of Personnel and Administration to conduct hearings if time is determined to be a factor.
- D. The Board may enter into a voluntary agreement with any school or agent to suspend, revoke, or place on probation the school's Certificate of Approval or the agent's permit. Such agreements shall have the force and effect of an order of the Board and violation of the terms of such agreement by a school or agent shall be grounds for disciplinary action up to and including revocation of the school's Certificate of Approval or the agent's permit.

- E. Administrative Fines or Fees. In addition to or in lieu of seeking a temporary restraining order or an injunction pursuant to § 23-64-131(1), C.R.S., the Board may impose a fine on any entity which violates the Act, the Rules, or an order of the Board. In pursuing a school or agent which violates the Act, the Rules, or an order of the Board, the Board may also assess fees incurred by the Board for the direct and indirect costs of the administration of the Act pursuant to § 23-64-122(1), C.R.S. Fines or fees for violations shall be determined by the Board pursuant to the Act and the Rules. There is no statutory minimum or maximum fine or fee amount prescribed by the Act. Fines or fees may be imposed by the Board, unless otherwise provided by the Act or the Rules.

1. Procedure.

- a. Notice of Noncompliance. Based upon a reasonable belief that a violation occurred, the Board may issue a Notice of Noncompliance to the school or agent requesting a response. After receiving the response, the Board shall deliberate and make a decision on the issuance of a fine or fee and the fine or fee amount.
- b. Notice of Fine or Fee. If the Board decides to fine a school or agent, the Board shall issue a Notice of Fine or Fee, which shall:
 - (i) Identify the school or agent,
 - (ii) Provide a concise statement of the facts and/or conduct constituting the violation and the specific statutory provision or rule violated,
 - (iii) The fine or fee assessed in accordance to this Rule,
 - (iv) A statement that the school or agent has a right to request a hearing of the Board's decision, and
- (v) A statement of how and when the fine or fee must be paid.

2. Factors Used to Determine Fine or Fee Amount. In determining whether to impose a fine or fee and the amount of the fine or fee, the Board shall consider and take into account the following aggravating and mitigating factors in establishing the degree of seriousness of the violation(s) for which to impose a fine or fee on a school or agent:

- (a) Aggravating Factors.
 - The school or agent has failed to correct the violation or continues or repeats the violation,
 - The violation involved intentional, misleading, and false representation, reporting and disclosure,

- The actual and potential damages suffered, and actual or potential costs incurred, by the Board, or by any other person as a result of the violation,
- The violation resulted in intentional and reckless willful and negligent conduct,
- The violation resulted in significant negative impact, threat, or harm to the public, and
- The school or agent has engaged in a pattern of noncompliance with Board laws, rules, and orders.

(b) Mitigating Factors:

- The school or agent self-reported the violation,
- The school or agent demonstrated prompt, effective and prudent response to the violation, to remedy and mitigate whatever harm might have been done as result of the violation,
- The school or agent cooperated with the Board, or other agencies and impacted parties with respect to addressing the violation, and
- The violation was outside of the entity's reasonable control and responsibility.

3. Schedule of Fines or Fees. Unless otherwise provided by the Act, the Board may utilize the following classification table in determining and imposing administrative fines or fees on a school or agent:

Violation	Fine or Fee
Deceptive Trade or Sales Practice §§ 23-64-112(1)(k) and 23-64-123, C.R.S., and/or Board Rule VII.	\$1000 minimum for each violation.
Operating after expiration date of certificate of approval, § 23-64-113(1)(a), C.R.S., and/or Board Rule IV.	\$1000 minimum for violation and \$50 each day in violation.
Operating without adequate Surety Coverage, § 23-64-121, C.R.S., and/or Board Rules IV or V.	\$1000 minimum for violation and \$50 each day in violation.
Offering Program/Courses without Board approval, § 23-64-112(1)(c), C.R.S., and/or Rule III.B.	\$500 minimum fine for each violation.
Unauthorized agent, § 23-64-111, C.R.S., and/or Board Rule VI.	\$500 minimum for violation and \$50 per day in violation.
Failure to adhere to state refund policy upon student withdraw or termination, § 23-64-120, C.R.S., and/or Board Rule VIII.	1st violation: minimum \$100; 2nd minimum \$300; 3rd minimum \$500, and each violation thereafter.
Unqualified instructional staff, § 23-64-112(1)(e), C.R.S., and/or Board Rule III.C.	1st violation: minimum \$200; 2nd violation minimum \$300; 3rd violation minimum \$500 and each violation thereafter.
Failure to timely and adequately correct an on-site inspection deficiency and/or application/record review, § 23-64-112, C.R.S.	1st Offense minimum \$100 per violation; 2nd Offense minimum \$300 per violation; 3rd Offense minimum \$500 per violation, and each violation thereafter.
False statement about material fact in application, § 23-64-112, C.R.S., and/or Board Rule XI.	\$500 minimum per violation
Failure to properly execute student enrollment agreement, § 23-64-126, C.R.S., and/or Board Rule III.H.	\$200 minimum per violation
Any other violation of the Act, Rule or order of the Board.	\$100 to \$5000 per violation

4. Administrative Hearing. In lieu of paying the imposed fine or fee, the school or agent may request a hearing before an administrative law judge in accordance to the State Administrative Procedures Act. All final decisions of the Board regarding the issuance of fines or fees and any other form of disciplinary action as set forth in the Act, including administrative fines or fees, shall be in accordance to the State Administrative Procedures Act.
5. Payment of fines or fees. Unless the school or agent requests a hearing pursuant to the State Administrative Procedures Act, any fine or fee imposed pursuant to § 23-64-131, C.R.S., and this Rule shall be paid within 30 days of the date of the Notice of Fine or Fee. Any fine or fee imposed subsequent to an administrative hearing and final Board order shall be paid within 30 days of a final Board order. All fines or fees shall be paid electronically. All fines collected pursuant to this Rule shall be transferred to the State Treasurer, who shall credit the same to the State General Fund.
6. Failure to Pay a Fine or fee. Failure to pay an administrative fine or fee by its due date may result in the suspension or revocation of the school's certificate of approval or the agent's permit in accordance with the Act, the Rules and the State Administrative Procedures Act.

Editor's Notes

History

Rule II-F eff. 03/02/2009.

Entire rule eff. 03/31/2009.

Rule V.C. eff. 11/01/2010.

Entire rule eff. 12/10/2011.

Fee Schedule emer. rule eff. 11/06/2013.

Entire rule eff. 12/30/2013.

Fee Schedule eff. 03/02/2014.

Fee Schedule eff. 09/14/2014.

Fee Schedule, Rules IV. E. 1. b, XI. D. 1-3 eff. 01/31/2017.

Entire rule eff. 06/14/2018.

Entire rule eff. 12/15/2019.

Rule II.H emer. rule eff. 06/16/2020; expired 10/14/2020.

Rules I.E, I.P, I.GG, III.A.3, III.B.1, III.G.1.s-u, III.H.3.f, III.I.3, III.I.5, IV.D, IV.E.2, V.A.2, V.B.1, V.D.1, VI.E.1.e, IX.B, XI.A.6 eff. 04/01/2021. Rule III.B.8 repealed eff. 04/01/2021.

Rules I R, Fee Schedule, III A.1, III C.2, III E.2.b(2)-(3), III E.2.c(2), III G.1.v, III H.3.f, III I.3.e, III I.4.a(2), III I.5.a, IV E.3.d, IV E.7.b, IV E.11.c, V, V D.1.a, VII L, XI D.2(a), XI D.3 eff. 04/01/2022.

Rules I, II, III.B.1.a, III.B.6.g, III.E.2.a, III.E.2.e, III.F.2, III.H.3.h, III.I.4.b, III.I.5-6, IV.D.4, V.B.1.d, IX.B, XI.A.3, XI.D eff. 04/01/2023. Rule III.B.7 repealed eff. 04/01/2023.

Rules I, II, III.I.4, IV.F.3, VII.T eff. 04/01/2024.

Rules I.MM, II.G-H, III.I.4, IV.E.7-10, IV.F.3, V.E, VI.E.1.a, VII.I, VII.L, VII.U eff. 04/01/2025. Rule IV.E.1.b(2)(iv) repealed eff. 04/01/2025.

Entire rule eff. 04/01/2026.